

****The Family Court is Again Subject to Serious Criticism****

Date: 02-07-2024

****Decision****

Public Authorities

Serious Criticism

Supervision / Self-initiated Case

Processing Security

Unintentional Disclosure

The Data Protection Agency has once again expressed criticism of the Family Court for a lack of processing security, which has led to several instances of unintentional disclosure of protected information and information about stays at crisis centers.

****Journal Number:**** 2023-432-0003

****Summary****

The Family Court has reported 28 breaches of personal data security to the Data Protection Agency during the period from January 6, 2023, to June 30, 2024. The breaches consist of the Family Court unlawfully disclosing information about protected names and addresses or other information that could potentially reveal a person's whereabouts, including stays at crisis centers. In most cases, the information was disclosed to the other party in the case, which typically could be the reason for the choice of name and address protection or stay at a crisis center. The unintentional disclosures are due to human errors resulting from employee inattention. The Data Protection Agency has previously dealt with two similar cases regarding the Family Court's unintentional disclosure of the same types of information. The Data Protection Agency made decisions in these cases on March 4, 2021, and September 6, 2022. In both cases, serious criticism was expressed, and in the 2022 case, the Family Court was also ordered to conduct a renewed risk assessment and, based on this, to establish necessary organizational or technical security measures to reduce the risk of new similar breaches.

****Serious Criticism for Failing to Meet the Requirement for Appropriate Security****

The Data Protection Agency can ascertain that the Family Court has, over the years, initiated a number of security measures to reduce the risk of this type of breach. However, the Data Protection Agency finds grounds to once again express serious criticism that the Family Court has not met the requirement for appropriate security. In light of the still relatively high number of breaches and the very serious consequences that this type of breach can have for the affected individuals, it is the Data Protection Agency's opinion that the Family Court must continue to make even very significant efforts to avoid unintentional disclosure of particularly information about protected names and addresses and stays at crisis centers, etc. Furthermore, it is the Data Protection Agency's opinion that the Family Court has not yet implemented sufficient security measures—or ensured that the identified measures have had the necessary effect—to reduce the risk that employees, due to errors, misunderstandings, or inattention, unintentionally disclose information about registered individuals to unauthorized recipients, including particularly the opposing party in the case, which is often the reason for the need for protection.

Thus, the Family Court has not sufficiently ensured that employees have exercised the necessary care in processing citizens' personal data, including in connection with the additional control that, in certain cases, is performed by another caseworker, nor have sufficient organizational or technical security measures been implemented to otherwise mitigate the unintentional disclosures of personal data that have continuously occurred as a result of misunderstandings, errors, or inattention among employees.

However, the Data Protection Agency has noted that the Family Court continues to work on strengthening existing measures and implementing new measures aimed at reducing the risk of similar breaches, as well as implementing processes for ongoing control and evaluation of the effectiveness of existing security measures, including in connection with the identification of new breaches. The Data Protection Agency finds grounds to continue to closely monitor the development in the number of such breaches. In this regard, the Data Protection Agency has requested that the Family Court provide detailed information in the coming year—regarding the information already provided in connection with

the reporting of the breach to the Data Protection Agency—concerning any future breaches of the same type. This includes, among other things, a detailed description of what the assessment of the breach has led to in terms of reducing the risk of similar breaches.

Repeated breaches of personal data security should generally prompt data controllers to reflect on already conducted risk assessments. Breach types attributed to personal errors or isolated incidents should, upon repetition, lead to the introduction of additional effective control measures, new guidelines, and/or technical support that minimizes the now known and updated risks.

****Decision****

1. **Background**

The Data Protection Agency hereby returns to the case[1], where the Data Protection Agency on September 6, 2022 – in a case that the agency had initiated on its own regarding the Family Court's unintentional disclosures of protected name and address information – expressed serious criticism that the Family Court's processing of personal data had not been conducted in accordance with the rules in the General Data Protection Regulation[2] Article 32, paragraph 1. The Data Protection Agency also found grounds to issue the Family Court an order to conduct a renewed...

Risk assessment based on the breaches addressed in the decision. The Family Law House was also required, based on the risk assessment, to establish necessary organizational and/or technical security measures. If the Family Law House assessed that the risk to the rights and freedoms of the registered individuals was high, the order also included that the Family Law House should prepare a consequence analysis, cf. Article 35 of the General Data Protection Regulation. The deadline for complying with the order was January 6, 2023. The Data Protection Agency requested, by the same date, to receive confirmation that the order had been complied with, as well as information on what changes in the technical and organizational measures had been implemented.

The case concerned 37 reports of breaches of personal data security received from May 27, 2021, to August 16, 2022. The breaches involved the disclosure of protected addresses, protected names, phone numbers, email addresses, information about where the children attended school or institution, the residence of one party, including names of crisis centers, first name and job title of the leader of a crisis center, city or municipality, which could potentially reveal the party's residence to the unauthorized recipient. In most cases, the information had been disclosed to the opposing party in the case, who was typically the person responsible for the party having name and address protection. The reason for wanting name and address protection in relation to the opposing party could be to prevent the opposing party from obtaining information about the residence, e.g., due to concerns about child abduction, violence, etc., or because the party did not wish to have contact via email or phone with the other party, who may also have a restraining order. In some cases, one parent had also changed their name to hide from the other parent.

The information had been disclosed in connection with responses to requests for access to documents, sending decisions, information letters, and party hearings. The disclosures were primarily due to human errors in the form of caseworkers not being attentive to the information, which is why the necessary anonymization of the information had not been carried out before decisions, etc., were sent to the opposing party.

The Data Protection Agency stated in connection with the criticism decision that the agency could ascertain that the Family Law House – following the agency's decision of March 4, 2021 – had implemented significant organizational measures to avoid unintentional disclosure of protected name and address information. However, it was the Data Protection Agency's opinion that new and repeated breaches of personal data security or incidents that should be recorded on the list required under Article 33, paragraph 5 of the General Data Protection Regulation should have prompted the data controller to reflect on already conducted risk assessments. Breach types attributed to personal errors or isolated incidents should – upon repetition – have led to the introduction of additional effective control measures or technical support that minimized the now known and actualized risks.

The Data Protection Agency found that the Family Law House – by having identified and reported

several similar breaches of personal data security, without having reconsidered the existing measures to prevent future breaches of the same type – had not taken appropriate organizational and technical measures to ensure a level of security that was appropriate to the risks associated with the Family Law House's processing of personal data, cf. Article 32, paragraph 1 of the General Data Protection Regulation. The Data Protection Agency placed particular emphasis on the fact that the Family Law House had not sufficiently had the necessary procedures for regular verification, assessment, and evaluation of the effectiveness of the already established measures.

The Data Protection Agency also expressed serious criticism of the Family Law House on March 4, 2021. The Data Protection Agency also initiated a case on its own initiative against the Family Law House on October 1, 2020, as the agency could ascertain that the Family Law House had reported 158 breaches of personal data security from May 2018 until September 27, 2020, and that 134 of these reports concerned unintentional disclosure of personal data. Of the 134 breaches, 34 cases were found to involve individuals with protected names and addresses.

The Data Protection Agency made a decision in the case on March 4, 2021. The Data Protection Agency found, among other things, that the Family Law House had not sufficiently ensured that employees had exercised the necessary care in processing citizens' personal data, including protected name and address information. It was the Data Protection Agency's assessment that the human errors could have been avoided with the necessary care from the employees' side, just as the extra control performed by another caseworker was evidently not sufficiently effective.

On that basis, the Data Protection Agency found grounds to express serious criticism that the Family Law House's processing of personal data had not been carried out in accordance with the rules in Article 32, paragraph 1 of the General Data Protection Regulation.

2. Decision

The Data Protection Agency has noted that the Family Law House on January 6, 2023, submitted a risk assessment and consequence analysis containing additional measures aimed at reducing the risk of unintentional disclosure of personal data. However, the Data Protection Agency has followed the subsequent development in the number of the same type of breaches as those covered by the decision of September 6, 2022, and on that basis, the Data Protection Agency finds that there again... is the basis for making serious criticism that the

Family Law House's processing of personal data has not been conducted in accordance with the rules in Article 32, paragraph 1 of the Data Protection Regulation[5].

Future processes in the event of similar security breaches

Based on this and previous decisions, which

illustrate that there has been a relatively large number of

breaches of a nature that can have very serious

consequences for the affected individuals over a

prolonged period, despite information about

many established security measures, the

Data Protection Agency finds grounds to request the Family Law House

to submit detailed information[6] regarding

any future security breaches of the same type

as those covered by the decision of September 6, 2022.

The Family Law House is requested to provide, among other things, the following:

A detailed description of the incident

A detailed description of the cause of the breach

Were there guidelines, procedures, or processes

etc., that could reduce the risk of such breaches?

If yes – specify which

If yes – were they followed?

If yes – were the relevant employees aware

of them?

A description of what the assessment of the breach has led to in terms of reducing the risk of similar breaches, including, for example:

Refreshment/reinforcement of existing measures – specify which and how and to whom this has occurred/will occur

Adjustment of existing guidelines/procedures etc. – specify which and how and to whom they are/will be disseminated

Introduction of new measures – specify which and how and to whom they are/will be disseminated

Nothing – specify why

A description of who/which units have been involved in handling the breach, including the decision to implement or refrain from implementing measures to reduce the risk of similar breaches, as well as how the considerations and decisions regarding this have been documented

A detailed description of what consequences the breach may have or has had for the registered

What the Family Law House has done to mitigate undesired consequences of the breach

Other information deemed relevant in connection with the Data Protection Agency's assessment of the Family Law House's handling of the breach, including to avoid similar breaches.

The deadline for submitting the detailed information is 4 weeks after the breach has been reported to the Data Protection Agency. This arrangement is temporarily applicable to breaches reported to the Data Protection Agency until July 1, 2025.

It is noted in connection with the above that the Data Protection Agency has noted that the Family Law House on December 8, 2023, has stated that the procedure for handling reported data breaches has been revised so that each breach is investigated thoroughly specifically to create a better basis for organizing effective measures.

Below follows a detailed review of the case's information and a justification for the Data Protection Agency's decision.

3. Case Presentation

Supplementary measures as a result of the mandated risk assessment

The Family Law House submitted a risk assessment and impact analysis on January 6, 2023, in which the Family Law House accounted for initiated and planned measures aimed at reducing the number of security breaches, which are largely due to human error.

It appears from this that the Family Law House has, among other things, initiated the following supplementary security measures:

Data minimization in the application via self-service solution, including the design of the application form (effect assessed: high – initiated in Q1 2023)

Implementation of a new case management system that more effectively supports privacy by design, including supporting data minimization and anonymization both in the application and case processing and dispatch process, as well as supporting more uniform, cross-cutting procedures (effect assessed: medium – initiated in Q2 2022, expected to be implemented in 2024)

Data minimization in letter templates, notes, and meeting minutes, including (i) ensuring the design and format of the templates and (ii) developing uniform, cross-cutting procedures with guidance and instructions for employees regarding the use and completion of the templates (effect assessed: high – initiated in Q3 2022, expected to be implemented by the end of Q2 2024)

Expansion and formalization of the existing GDPR awareness program with targeted and scheduled awareness, including both at a general level for the entire organization and more specific training for selected departments, units, and employee groups with respect to, among other things, the processing activities that are assessed to be associated with the greatest risks, and the parts of the organization that have the most contact with personal data processing and are assigned specific roles and responsibilities in the information security organization (effect assessed: high – initiated in Q1 2023)

Implementation of a solution for delayed dispatch of letters etc. via remote printing from F2 (case management system) to thereby more effectively enable the recall of correspondence in the event of erroneous dispatch (effect assessed: medium – already initiated and expected to be implemented by the end of Q1 / beginning of Q2 2023)

****Introduction of Necessary Procedures for Regular Review, Assessment, and Evaluation of the Effectiveness of Already Established Measures, Including e.g. ****

(i) Sampling to determine whether employees have undergone the necessary awareness training, (ii) Checking that individual employees comply with established procedures, and (iii) Implementation of an annual cycle that ensures ongoing and regular control, assessment, and evaluation of the effectiveness of the established security measures (effect assessed: medium – initiated Q1 2023)

****Implementation of a New Anonymization Tool****

that aims to scan documents for specific data fields containing personal data (effect assessed: high – expected to be implemented in Q1 2023)

****Development/Expansion of Workflows, Instructions to Support Proper Personal Data Handling,**** including a focus on supporting work with e.g. handling anonymization and proper note-taking (effect assessed: medium – initiated Q3 2022)

****Obtaining Updated Estimate from Supplier on F2****

(case management system) for estimate and solution proposal addressing errors in the mail merge function (effect assessed: medium – renewed estimate for solution obtained in Q1 2023).

****Subsequent Development in the Number of Breaches****

The Data Protection Authority has followed the subsequent development in the number of reported security breaches of the same type as those covered by the decision of September 6, 2022, to clarify whether there has been a decrease in the number of breaches – which may possibly be attributed to the introduction of additional security measures.

The review of the breaches has shown that the Family Court has reported 28 similar breaches during the period from January 6, 2023, to June 30, 2024, distributed as follows[7]:

- 3 breaches in the period from January 6, 2023, to May 30, 2023
- 12 breaches in the period from June 1, 2023, to August 31, 2023
- 3 breaches in the period from September 1, 2023, to November 30, 2023
- 6 breaches in the period from December 1, 2023, to January 31, 2024
- 4 breaches in the period from February 1, 2024, to June 30, 2024.

The reasons for the reported security breaches are primarily indicated to be human errors in the form of employee inattention.

****Family Court's Statement of September 15, 2023, on the Effectiveness of Security Measures****

As part of the assessment of whether the Family Court has complied with the order of September 22, 2022, the Data Protection Authority reviewed the similar breaches that the Family Court reported to the Data Protection Authority during the period from September 22, 2022, to July 31, 2023. In total, there were 28 breaches, of which 13 were reported after January 6, 2023.

Of the 13 breaches, 10 were reported in June and July 2023, respectively.

On this basis, the Data Protection Authority requested by letter dated August 18, 2023, that the Family Court inform whether it is assessed that the additional established security measures have had an effect in reducing the risk of unintentional disclosure of, among other things, protected name and address information, and whether the Family Court expects a further effect in light of the fact that not all planned measures have been implemented yet.

The Family Court informed on September 15, 2023, that there was a strong focus on avoiding data breaches in the approximately 150,000 cases processed annually. The Family Court had thus initiated a number of initiatives and in this connection had particularly implemented awareness measures, reviewed self-service solutions aimed at data minimization, and improved workflows to minimize the number of data breaches. Additionally, the Family Court was engaged in work to ensure an even greater focus on precision in obtaining information and on the basis for assessing which information can and should be exempted from party hearing and access to documents.

The Family Court further pointed out that there were (already) the following special case processing steps to address this type of security breach:

- If one of the parties in the case is residing at a crisis center, it is registered in the case title. This ensures that the caseworker can clearly see that one of the parties has or has had residence at a crisis center or has name and address protection.
- In connection with party hearings and access to documents, where a party resides at a crisis center, it is stated in the Family Court's guidelines that information about residence at a crisis center must be removed so that the opposing party cannot become aware of where the other party resides, unless it is specifically stated that it is not necessary.
- In cases where one of the parties has name and address protection, this is also added to the case title, ensuring that in party hearings and access to documents, it is considered whether name and address protection indicates a situation where such conditions are present that decisive considerations for private interests dictate that the information must be kept confidential under the provisions of the Public Administration Act § 15 b, no. 5.
- When a caseworker has exempted information from party hearing/access to documents, the party hearing/access must always be double-checked by a colleague to catch any errors in anonymization.

- If the task of providing access to documents is delegated to the unit that handles access requests, it must be noted on the access request that specifically...

****To clarify whether the opposing party and possibly the child/children have name and address protection or are at a crisis center. In this context, it must be clarified whether the person requesting access to documents may be informed of the opposing party's/child's/children's name, address, and contact details.****

It was the assessment of the Family Law House that there had been a positive development in the number of data breaches in general, but also for data breaches concerning information about name and address protection. However, the development over the summer of 2023 was excluded from this, which the Family Law House would investigate the background for. The Family Law House thus closely monitored the development with a view to being able to implement appropriate measures if needed.

Furthermore, it was stated that the Family Law House was in the final phase regarding the decision on the choice of anonymization tool for purchase and implementation, which is expected to reduce the number of data breaches in the form of overlooked individual disclosures of otherwise confidential information.

Finally, the Family Law House stated that a new case management system would not be purchased, but that the existing system would instead be improved.

****Family Law House's supplementary statement of December 8, 2023, regarding the handling of subsequent breaches****

At the end of October 2023, the Data Protection Agency again assessed the number of received reports from the Family Law House concerning incidents of unintended disclosure of information about protected names and addresses, etc. The assessment showed that the Family Law House had reported a total of 18 breaches of that type in the period from January to October 2023.

On this basis, the Data Protection Agency found reason to conduct a new hearing to determine whether the Family Law House had practically implemented and continued to implement necessary security measures to avoid such breaches. The Data Protection Agency requested, among other things, to be informed of the following:

1. The reason for the 18 breaches
2. Why the breaches could occur despite the implemented security measures
3. Whether the involved employees had undergone relevant awareness training, and whether they were familiar with relevant guidelines for handling, among other things, party hearings and requests for access to documents
4. Whether stays at crisis centers as well as name and address protection were registered in the case title in all cases
5. Whether a double-check was performed by a colleague in cases where a caseworker had exempted information in connection with party hearings and requests for access to documents
6. A description of the process for avoiding similar breaches.
7. Whether there was a basis for introducing new measures to avoid similar breaches.

In a letter dated December 8, 2023, the Family Law House stated, among other things, the following:

In the vast majority of cases, the breaches occurred due to inattention on the part of the caseworker. In about half of the cases, the caseworker was aware of the need for protection, but the employee, due to general inattention, overlooked a single piece of protected information in connection with the disclosure. This situation poses the challenge that usual organizational security measures may not necessarily have the desired effect.

The challenge is particularly significant during the summer vacation period (June-August), and during this period, various types of inattention occur among employees, including the oversight of protection needs. This period presents unique challenges in relation to taking vacations over an extended period,

where, considering the nature of the Family Law House's portfolio of tasks, it is necessary to maintain approximately normal operations, where the length of the vacation will usually mean that hearings or other incoming inquiries cannot wait for the caseworker to return. Remaining colleagues therefore have to act as post passers in cases where the caseworker is on summer vacation. This creates an increased risk that caseworkers send letters or hearings in cases they do not have the same in-depth knowledge of as the cases they have handled over a longer period.

From the start of employment and ongoing awareness training of the Family Law House's employees in guidelines, procedures, and processes aimed at training employees to protect information about protected names and addresses and information about crisis centers against, among other things, unauthorized disclosure. At the same time, the applicable guidelines for handling the mentioned information are discussed at every relevant opportunity and especially when there has been a breach of personal data security involving the information. In this context, it is also discussed whether there is a need for additional measures. The breaches in question occurred due to inattention on the part of the employee, and therefore do not give reason to believe that the employees had not received sufficient awareness training.

There was not in all relevant cases a registration of information about name and address protection and/or stays at crisis centers in the case title.

It was not in all cases where information should be exempted that a double-check was performed by a colleague to catch any errors in the anonymization. In the majority of the cases in question (11 out of 18 cases), the caseworker overlooked that there was a need to protect...

information. In these cases, the relevant employees did not have the opportunity to have a colleague double-check the records in a decision regarding access to documents or in a party hearing before they were sent, as double-checking is only performed in cases where it has been assessed that information should be exempted. Additionally, there have been some particular oversights, including misunderstandings or a lack of attention to the fact that a specific type of document could contain sensitive information. As a result, the case/document was not sent for double-checking by a colleague. In the other part of the cases (6 out of 18), the employee had exempted information and subsequently sent the documents for double-checking to a colleague. Despite the extra control, there were still pieces of information that had not been redacted before the documents/records were forwarded. One case did not involve a lack of anonymization but rather sending to the wrong recipient.

Regarding the process to avoid similar breaches, the Family Court Agency stated that the specific breaches are discussed at unit meetings. In this context, the applicable guidelines for handling cases that include the mentioned information are reviewed. In the fourth quarter of 2023, an initiative was launched where all employees of the Family Court Agency were informed weekly about the breaches that had occurred in the previous week, with the aim of increasing employees' awareness and focus on the protection of sensitive information. The initiative would be evaluated in January, after which a more permanent procedure for ongoing joint follow-up on data breaches would be established.

The Family Court Agency has, as a general rule, not introduced new measures based on the 18 breaches; however, based on the total number of breaches, the procedure for handling reported data breaches has been revised so that each breach is investigated thoroughly specifically to create a better basis for organizing effective measures.

The Family Court Agency is particularly attentive to cases that involve protected names and addresses as well as information about crisis center stays, and this has resulted in a number of technical and organizational measures over several years, which the Family Court Agency has reported in previous consultation responses. The Family Court Agency is, as previously mentioned, aware that there has been a negative development in the number of breaches over the summer of 2023, where protected name and address information and information about crisis center stays have been improperly disclosed. Specifically, there were 13 breaches that occurred in June, July, and August, which constitutes a significant proportion of the total breaches of this type. Therefore, there is an awareness that extra efforts need to be made during these months. The measures deemed appropriate to address

the issue are planned to be clarified and implemented in the first quarter of 2024.

Furthermore, a reminder has been sent out to all employees via the intranet to include the title of cases with name and address protection or crisis center stays with information regarding this. The Family Court Agency is also engaged in a larger cross-sectional effort to review knowledge solutions, letters, and workflows to ensure that no more information is obtained or reproduced in the Family Court Agency's cases than necessary, and to establish a common basis for assessing when there is a specific need for protection, and when, conversely, there are name and address details known to both parties, and where a registered name and address protection serves a different purpose than protection against the opposing party in the case. This work is also expected to further increase awareness of the issues related to name and address protection as well as crisis center information, and it has been decided that in this context, a measure will be implemented whereby it must be explicitly documented in the case – either in a note or letter – that a decision has been made regarding the need to protect the information.

Regarding technical security measures in the ESDH system, the Family Court Agency stated that there must first be a consolidation of the system to another and more operationally friendly environment at State IT before it will be possible to introduce these. The consolidation is expected to be completed by mid-2024, after which the Family Court Agency will begin work to find relevant technical security measures to address the challenges that the significant increase in data breaches during the summer period this year has demonstrated. However, as previously stated, the Family Court Agency has been working to acquire a modern anonymization tool to a greater extent to utilize technical aids in the work of protecting, among other things, protected name and address information as well as information about crisis center stays. The purchase of the tool has been approved by the management of the Family Court Agency, and implementation is expected to begin in January 2024. The tool is expected to be fully implemented by the end of the first quarter of 2024.

The Family Court Agency's supplementary statement of April 17, 2024, regarding measures to reduce the risk of an increase in the number of breaches in the summer of 2024. By letter dated March 25, 2024, the Data Protection Agency requested to be informed of the measures identified to address the issue of security breaches during the summer holiday period, and when they were or would be implemented. The Family Court Agency informed in this regard by letter dated April 17, 2024, that new software had been purchased in January 2024 for the identification and masking of information that needs to be protected from disclosure, and that the software was under gradual implementation. In February 2024, a short delay was introduced in the Family Court Agency's ESDH system for the sending of digital mail, so that errors detected immediately after sending can be handled by recalling the dispatch. In

****First Quarter 2024****

The Family Law House has held thematic meetings in its professional network regarding the Family Law House's handling of personal data. Furthermore, the Family Law House will work purposefully on awareness leading up to and throughout the summer period of 2024, and there will be a duty roster for consultation, particularly regarding the disclosure of information, to address any uncertainties during periods when key professional personnel in the offices may be on vacation.

****4. Justification for the Data Protection Authority's Decision****

The Data Protection Authority assumes that the Family Law House has reported 28 breaches concerning the unintentional disclosure of information about protected names and addresses or other information that could potentially reveal the party's whereabouts during the period from January 6, 2023, to June 30, 2024. The information has typically been disclosed to the opposing party, which may be the reason for the choice of, among other things, name and address protection. There was particularly a larger number of breaches during two shorter periods – specifically in the summer of 2023 and around the turn of the year 2023/2024.

The Data Protection Authority further assumes that the unintentional disclosures of the information are due to human errors resulting from employee inattention.

Additionally, the Data Protection Authority assumes that the Family Law House has, over the years, taken the initiative to implement a series of security measures to reduce the risk of this type of breach.

It follows from Article 32, paragraph 1 of the General Data Protection Regulation that the data controller, taking into account the current technical level, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, must implement appropriate technical and organizational measures to ensure a level of security appropriate to these risks.

Thus, the data controller has an obligation to identify the risks that its processing poses to the data subjects and to ensure that appropriate security measures are implemented to protect the data subjects against these risks. The General Data Protection Regulation does not prescribe which specific security measures must be implemented to meet the regulation's requirements for processing security, as the focus is instead on a risk-based approach. However, it can generally be stated that the requirements for processing security are heightened the higher the risk is for the affected individuals whose information an organization processes.

It is the opinion of the Data Protection Authority that the requirement under Article 32 for appropriate security will normally imply that, as a data controller, one must ensure that information about data subjects, including particularly confidential and sensitive information, does not come to the knowledge of unauthorized persons, and that, therefore, appropriate quality control of the content in sent documents should be performed to avoid disclosures of personal data to unauthorized parties, and that handling of confidential and sensitive personal data generally imposes greater demands on employees' diligence in connection with the sending of personal data, including ensuring that correct information is sent to the correct recipient.

Furthermore, it follows from Article 32, paragraph 1, letter d of the regulation that the data controller, as relevant, must implement a procedure for regular testing, assessment, and evaluation of the effectiveness of the technical and organizational measures to ensure processing security.

This requirement entails, among other things, that repeated breaches of personal data security should prompt the data controller to reflect on already conducted risk assessments. Types of breaches attributed to personal errors or isolated incidents should, upon repetition, lead to the introduction of additional effective control measures, new guidelines, and/or technical support that minimizes the now known and updated risks.

The Data Protection Authority can ascertain that the Family Law House – following the Authority's decision of March 4, 2021 – has implemented significant organizational measures to avoid unintentional disclosure of protected name and address information.

The Data Protection Authority is also aware that the Family Law House processes a very large number of cases each year, including cases involving protected names and addresses, and that security breaches due to human errors can be difficult to completely avoid in these cases, where the disclosure of information is seen to depend on manual processes and assessments.

Given the continued relatively high number of breaches and the very serious consequences that this type of breach can have for the affected individuals, it is, however, the opinion of the Data Protection Authority that considerable ongoing efforts must still be made to avoid unintentional disclosures, particularly of information about protected names and addresses and residence at crisis centers, etc., and that the Family Law House has not yet implemented sufficient security measures – or ensured that the identified measures have had the necessary effect – to reduce the risk that employees, due to errors, misunderstandings, or inattention, unintentionally disclose information about data subjects to unauthorized recipients, including particularly the opposing party in the case, which is often the reason for the need for protection.

Thus, the Family Law House has not sufficiently ensured that employees have exercised the necessary care in the processing of citizens' personal data – particularly information about protected

names and addresses and other information that could potentially reveal a person's whereabouts with serious consequences.

hereunder in connection with the additional control that, in certain cases, is performed by another caseworker, as well as the fact that organizational or technical security measures have not yet been implemented to a sufficient extent, which could otherwise mitigate the unintended disclosures of personal data that have continuously occurred as a result of misunderstandings, errors, or lapses in attention by employees.

The Data Protection Agency finds, based on the above, that there is again grounds to express serious criticism of the Family Law Agency's processing of personal data not being in accordance with the rules in Article 32, paragraph 1 of the General Data Protection Regulation.

However, the Data Protection Agency has noted that the Family Law Agency is still working to strengthen existing measures and to implement new measures aimed at reducing the risk of similar breaches, particularly to avoid a recurrence of a larger number of breaches during the summer holiday period, as well as to implement processes for ongoing control and evaluation of the effectiveness of existing security measures, including in connection with the identification of new breaches.

The Data Protection Agency has further noted that the Family Law Agency has reported only 4 breaches of this type during the period from February 2024 to and including June 2024. One of the breaches occurred in January, which was also during one of the shorter periods when a larger number of breaches occurred. It is noted in this context that the Data Protection Agency assumes that the Family Law Agency clarifies whether there is also a need to implement additional measures to avoid a larger number of breaches in connection with the holiday period at the turn of the year 2024/2025, similar to what occurred at the turn of the year 2023/2024.

As stated above, the Data Protection Agency finds grounds to continue closely monitoring the development in the number of breaches of the type concerning this case. The Data Protection Agency therefore looks forward to receiving the detailed information specified in section 2 regarding any new breaches of this type.

5. Final Remarks

The decisions of the Data Protection Agency cannot be appealed to another administrative authority, cf. Section 30 of the Data Protection Act. However, the Agency's decisions can be appealed to the courts, cf. Section 63 of the Constitution.

The Data Protection Agency hereby considers the case with case number 2023-432-0003 to be concluded. However, the Data Protection Agency looks forward to receiving detailed information about any similar breaches, as mentioned above.

[1] The case previously had this case number with the Data Protection Agency: 2021-432-0063.

[2] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

[3] The Data Protection Agency's case with case number 2020-432-0037.

[4] The Data Protection Agency's case with case number 2020-432-0037.

[5] Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation).

[6] In relation to the breach notification, which must be submitted no later than 72 hours after the Family Law Agency has become aware of the breach, cf. Article 33 of the General Data Protection Regulation.

[7] It is noted that the timing of the breach does not necessarily coincide with the timing of the notification. It may occur shorter or longer before the notification time, depending on how long it took to discover the breach and how quickly it was reported to the Data Protection Agency.